

\$3,488.42. Plaintiff provided a proposed Order and Judgment that will be executed by the Court.

IN RE: DILL

Case Number: 25CV-0207336

Tentative Ruling on Petition for Change of Name: Petitioner Dominick Nicholas Dill seeks to change his name to Dominick Nicholas France. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

Case Number: CVPO21-0198083

Tentative Ruling on Motion for Issue and/or Evidentiary Sanctions: Plaintiffs move for an order imposing issue and/or evidentiary sanctions against Defendants for their willful failure to comply with a prior Court order. Specifically, Plaintiffs request the following:

- A finding that Defendants willfully failed to comply with court orders with respect to the production of documents;
- That as a result of Defendants' knowing, intentional, willful, oppressive, and malicious misconduct, it is conclusively established they are legally responsible for the Covid outbreak at the Windsor facility in September 2020 that caused the death of Plaintiffs; and
- It is conclusively established that Defendants knowingly, intentionally, willfully, oppressively, and maliciously neglected Plaintiffs by clear and convincing evidence after they contracted Covid.

Plaintiffs also request monetary sanctions in the amount of \$11,050. The present motion was previously on calendar on December 16, 2024 and February 10, 2025 but continued to today's date to permit Defendants to complete the production of documents.

Merits of Motion: On May 14, 2024, Plaintiffs served Defendant Windsor Redding with a Third Request for Production of Documents. On June 17, 2024, Windsor Redding provided written responses to the discovery. After meet and confer efforts, Plaintiffs filed a motion to compel on August 7, 2024. The Court heard and granted the motion on September 16, 2024. The Court's order dated September 25, 2024 required Defendants to produce the requested documents within 45 days and imposed sanctions in the amount of \$2,860. At the expiration of the 45 deadline, Defendants provided amended responses and a limited production of the documents. Since that time Defendants have never fully complied with the Court's prior order. Defendants argue that the breadth of the required discovery and the time to fully review and produce the discovery has prevented them from a full production. Defendants originally estimated "substantial completion" of production by the end of January 2025; however, their supplemental status filed on February 3, 2025, now provides that the production will be completed by February 15, 2025. Defendants' supplemental status filed on May 5, 2025, shows progress on the production but also provides that production has not been completed. It should be noted that Defendants have never sought a protective order nor requested additional time from the Court to produce the records.

The Civil Discovery Act defines a misuse of discovery as, among other things, the disobedience of a court order to provide discovery. CCP § 2023.010(g). A court is permitted to impose issue or evidentiary sanctions for a misuse of the discovery process. CCP § 2023.020(b) and (c). The

Court finds that Defendants have disobeyed the Court's prior order dated September 25, 2024. The Court also finds that there have been substantial delays in complying with the discovery process; however, the Court acknowledges the substantial efforts made by Defendants in obtaining, review and producing the documentation. In light of those efforts, the Court finds that evidentiary and issues sanctions are unwarranted under the circumstances. Based on the delay and the disobedience of the Court's prior order, the Court finds that monetary sanctions are warranted. Plaintiffs shall be awarded monetary sanctions in the amount of \$11,050.

The request for evidentiary and issue sanctions is **DENIED**. The request for monetary sanctions in the amount of \$11,050 is **GRANTED**. Plaintiffs shall prepare an order consistent with the Court's final ruling.

Tentative Ruling on Motion to Compel Further Response to Requests for Production, Set Three: Plaintiffs move for an order compelling Defendants to produce all documents identified in their privilege log, to produce relevant documents without redactions, for monetary sanctions in the amount of \$10,200 and for issue and evidentiary sanctions. On May 5, 2025, Plaintiffs filed a Status Update that provides that rulings are no longer needed on the issue of privilege log and redacted documents. It also provides that issues raised related to the line testing documents "appears to be resolved." Based on the foregoing, the issues raised in Plaintiffs motion would appear to be moot. Plaintiffs request to compel further production is denied. The Court finds that issue, evidentiary and monetary sanctions are unwarranted under the circumstances. The request for sanctions is denied.

The motion is **DENIED**. Defendant Windsor Redding shall prepare an order consistent with the Court's final ruling.

Tentative Ruling on Motion to Compel Depositions of Persons Most Knowledgeable Regarding Defendants' Organizational Structure: On February 18, 2025, Plaintiffs filed nine separate motions to compel the Person Most Qualified depositions of various Defendants on the issue of organizational structure. Plaintiffs also seek monetary sanctions in the amount of \$3,565. Finally, Plaintiffs are seeking issue and evidentiary sanctions against Defendants. Recently, five of the nine motions were withdrawn. Defendants' opposition indicates that despite delays, they will be providing each of the PMQs for deposition. Given Defendants' willingness to provide the deponents, the issues raised by the motion appear moot. Also given the willingness of Defendants to provide the deponents, the Court finds that issue, evidentiary and monetary sanctions are unwarranted under the circumstances.

The motions are **DENIED**. Defense counsel shall prepare an order consistent with the Court's final ruling.

Tentative Ruling on Motion to Compel Production of Documents of Defendant River Valley Regarding Insurance: Plaintiffs move to compel the production of documents from Defendant River Valley Healthcare & Wellness Center, LP's Person Most Qualified ("PMQ") related to the topic of insurance. Plaintiffs are also requesting sanctions in the amount of \$3,085. Finally, Plaintiffs are seeking issue and evidentiary sanctions.

Merits of Motion. In March 2024, Plaintiffs served depositions notices for the Defendants Person Most Qualified on the topic of insurance. On August 5, 2024, the Court found good cause for the

depositions and ordered them to occur. On October 30, 2024, Plaintiffs deposed the PMQ from Defendant River Valley on the topic of insurance. The deponent was Farooq Mir, an attorney retained by River Valley to testify in this capacity.

Plaintiffs take the position that Mr. Mir did not have sufficient knowledge to testify as the PMQ, that he was unable to respond to all questions and that additional documents are required to be produced. The Court has reviewed the deposition transcript of Mr. Mir and finds he had sufficient knowledge and expertise to qualify as the PMQ on this topic. Plaintiffs fail to provide sufficient evidence that Mr. Mir did not qualify as the PMQ or that there are additional documents to produce. The Court notes that should further discovery show that there was a more appropriate PMQ or that there were other documents including insurance policies that should have been produced, that Plaintiffs would have the right to file a new discovery motion to compel a new deposition, and for sanctions. Plaintiffs' requests to compel an additional deposition or the production of additional documents are denied without prejudice.

The motion is **DENIED** without prejudice. Defendant River Valley shall prepare an order consistent with the Court's final ruling.

J.G. WENTWORTH ORIGINATIONS, LLC VS. H.J., REAL PARTY-IN-INTEREST

Case Number: 25CV-0207601

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor Heather Justice has agreed to transfer 198 monthly payments of \$500.00 each, commencing on December 1, 2027 through and including May 1, 2044, in exchange for \$25,000.00.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that "Interested parties" means, with respect to a structured settlement agreement, the payee, the payee's attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee's death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is "fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Section 10137(a). Ms. Justice has presented evidence that she is experiencing financial hardship and intends to use the funds on expenses, travel, and home improvement and repairs. She has no minor children and no support obligations. Ms. Justice has not sought to transfer any other portion of this annuity previously. Her Declaration indicates that she understands the terms of the transaction, although she has not sought independent legal or financial advice. The annuity is from a 2022 personal injury settlement. It was not intended for future medical care or living expenses.

The Court finds the transfer to be fair, reasonable, and in Ms. Justice's best interest based on the factors set forth in Ins. Code § 10139.5(b). The Court expressly finds that each requirement set forth in Ins. Code § 10139.5(a) has been met. The Petition is **GRANTED**. Petitioner did not